IN THE CIRCUIT COURT "11" HELD IN ACCRA ON MONDAY, THE 4TH DAY OF AUGUST 2025, BEFORE HER HONOUR BASILIA ADJEI-TAWIAH, CIRCUIT COURT JUDGE

SUIT NO. D21/194/2023

THE REPUBLIC

VS:

THOMAS KWABENA VORDZORGBE

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JUDGMENT

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BACKGROUND

This matter was originally presided over by H/H Judge Isaac Oheneba Kuffour before whom the trial completed on 2/5/24 and then adjourned for judgment to be delivered on 21/5/2024. However, the learned judge was transferred to another Court before he could deliver the judgment. By a special warrant, the baton was passed down to me to adopt the entire proceedings of the court and deliver the judgment.

BRIEF FACTS

The facts of this matter are that the complainant, Blessing Nenya, is a janitor and a Nigerian National and resides at Nungua Coco Beach. The Accused person is an unemployed Ghanaian citizen called Thomas Kwabena Vordzorgbe who also resides at

Nungua. On or around 6th November 2022 at about 10:00 pm, the complainant patronized a popular recreational place near the Spintex Road known as Nhyiraba Kojo. On the 7th day of November 2022 at about 3:00 am, the complainant proceeded to Nungua Shell Filling Station with the aim of hailing a taxi cab home. It was at this point that the accused person is alleged to have approached the complainant and ordered him to surrender his belongings. The complainant indicates that he resisted thus causing the accused person to bring out a machete and slashed his left hand with it. Complainant then surrendered his iTel smart phone valued at approximately GHS350.00 and a cash amount of GHS220.00. The accused person is alleged to have inflicted several other machete wounds on the complainant before absconding from the vicinity. In fact, the complainant, per his statement, said that had he not blocked the accused person with his hand, the accused person would have inflicted a machete wound to his head thus he sustained severe injuries to his hands and his left leg. Complainant was rushed by bystanders to the Dampong Pharmacy and later referred to the Ledzokuku Krowor Municipal (LEKMA) Hospital. Due to the extent of injuries, complainant was subsequently referred to the Greater Accra Regional (Ridge) Hospital in Accra. Prior to seeking medical treatment, complainant lodged a complaint at the Nungua Police Station where he was issued with a police medical form. Accused person was later found at the Nungua lorry station where he was alleged to have attempted to sell the iTel smart phone belonging to the complainant. He was subsequently arrested and the said phone retrieved from him. Complainant identified the accused person as his assailant and identified the said iTel smart phone as his own. Accused person was arraigned before this Court and remanded into lawful custody on 16th November, 2022.

CHARGES

By an Amended Charge Sheet filed by Prosecution on 21st November 2022, the Accused Person was charged with the following:

- One count of Robbery with the use of an offensive weapon contrary to Section 149 of the Criminal and Other Offences Act, 1960 (Act 29); and

- One count of Causing Unlawful Harm contrary to Section 69 of Act 29.

SUMMARY OF EVIDENCE ADDUCED AT TRIAL

PROSECUTION

Evidence in chief of Investigator (PW1)

The investigator's witness statement filed on the 22nd May 2023 was tendered in evidence without objection. The investigator, No. 42961 D/Sgt. Simon Migida Ndeog-Naab(PW1) stationed at the Kpeshie Divisional CID of the Ghana Police Service recalled that recalled that on the 6th day of November 2022, he was the investigator on duty between the hours of 6am and 6pm of the next day.
He recounted that on the 7th day of November 2022, at about 5:00 am a case of Robbery was reported by complainant Blessing Nenya that on the 6th day of November 2022, complainant went to Nhyiraba Kojo Night Club in the evening to have fun. On the 7th November 2022, at about 3:00 am, the complainant left the said Night Club and went to Nungua Shell Filling Station to buy bread. He then proceeded to the roadside in search of a Taxi cab, when he spotted the accused person who was dressed in all black walking towards the complainant. PW1 recounted that the complainant walked ahead and the accused person followed him and instructed him to stop which he obliged. When

Accused person approached the complainant, he demanded to know where he (complainant) was headed, and he told the accused person that he was heading towards Nungua Coco Beach.

PW1 stated that the accused person ordered the complainant to raise his hands which he again obliged. The accused person noticed the complainant's iTel smart phone, ordered him to hand it over to him, which he resisted and pleaded for mercy, but the accused person brandished a cutlass and cut the back of the complainant's left palm and he started bleeding profusely from the wounds inflicted.

The witness stated that he got to know the complainant when this case was referred to him for investigation. He recounted that he took photographs of the complainant's wounds and also issued him with a Police Medical Report Form to attend Hospital for treatment. He further gave evidence that on the 7th day of November 2022, at about 7:00 pm, the complainant together with one Maxwell Bortey arrested and brought suspect Thomas Kwabena Vordzorgbe to the Station and stated that, he was spotted offering the complainant's iTel smart phone for sale. He told the Court that the exhibit mobile phone was retained for evidential purposes. He further recounted that on the 8th day of November 2022, he obtained a statement from the complainant, an investigation cautioned statement from then suspect Thomas Kwabena Vordzorgbe wherein the accused person admitted having committed the crime and then charged the accused person with the offence of Robbery.

PW1 proceeded to tender without objection the following documents:

1. Photographs of Accused Person's injuries – Exhibits 'A' and 'A1'
2. Investigation Caution Statement of Accused Person – Exhibit 'B'
3. Charge Statement of Accused Person – Exhibit 'C'
4. Photographs of Smart phone (iTel) – Exhibits 'D', 'D1' and 'D2'

Cross-Examination of PW1 by Accused Person

The Accused Person was not represented by counsel; thus, he conducted the cross-examination of PW1 by himself. The accused person queried PW1 about who the arresting officer was i.e. who effected the arrest of the accused person. PW1 answered that it was the complainant and some other persons who were not police officers. Accused person put it to PW1 that he was not present when the complainant was injured. PW1 denied the assertion by the accused person. The accused person further put it to PW1 that the persons who perpetrated the crime against the complainant were allowed to run away. Again, PW1 denied the assertion of the accused person. The accused person further suggested to PW1 that PW1 took him to a place in the neighbourhood where boys usually gathered to verify if accused person was one of the complainant's assailants. PW1 answered in the negative and asserted that he took accused person to a place to retrieve the machete (cutlass) used for the commission of the crime. Under cross-examination, PW1 admitted that, of three machetes which he found at the place he was led to by the accused person, none of the machetes was the one used in the commission of the crime. PW1 disputed the colour of attire worn by the accused person on the day that the accused person was arrested. The accused suggested to PW1 that he wore a blue jeans jacket and a pair of trousers. PW1 denied this and stated that the accused person wore a black attire on the day of arrest of the accused person. PW1, under cross-examination stated that the accused was attempting to sell the phone which he stole at the time of his arrest. Accused person argued that the phone found on him was a 'yam' phone (basic keypad phone) and not the iTel smart phone as alleged by PW1 in his evidence in chief. PW1 insisted that the accused person was found with both the basic keypad phone and the iTel smart phone. Accused person suggested to PW1 that the complainant came to him (accused person) for money and that the complainant claimed to be tired of the case and was desirous of withdrawing the matter from Court. PW1 denied accused person's assertion and

responded that the accused person told him that he gave the complainant GHS3, 000 for his (complainant's) treatment and that he (PW1) paraded the complainant before the crime officer and station officer but the complainant denied receiving any such amount from the accused person. PW1 further stated that the accused person failed to produce the uncle through whom the accused person claimed to have paid the GHS3, 000 to the complainant. Prosecution did not re-examine PW1.

On 27th February 2024, Prosecution announced the closure of its case and prayed the court to strike out the witness statement of the complainant. The Court accordingly struck out the witness statement of the complainant and held the case of the prosecution as closed. The court invited the accused person to open his defence there being a prima facie case of robbery made against the accused person based on the evidence of the investigator (PW1).

The accused person elected voluntarily to give a sworn statement from the witness box.

DEFENCE

Evidence in chief of Accused Person (Ga)

The accused person stated on oath that he lived in Nungua and worked as a server at a drinking bar in Nungua. He recalled that on the 6th day of November 2022, he was asleep at his workplace and he overheard people saying that a Nigerian had been injured. While he was sleeping, he recounted that a few young men came into the bar to accuse him of causing injury to the Nigerian and they arrested him. He stated that since his arrest, he has been in custody. He further stated that, to date, he had not seen any of the people who arrested him and took him to the police station.

Cross-examination of Accused Person by Prosecution

Under cross-examination, the Accused person insisted that he was arrested and taken to the police station around 4pm on 6th November 2022. Prosecution put it to the accused person that he had an ITel smart phone in his possession at the time of his arrest. The accused person replied that he only had a small Samsung phone on him. Prosecution referred the accused person to Exhibits 'D', 'D1' and 'D2' which were photographs of an iTel smart phone which the Prosecution alleged belonged to the complainant. The accused person denied any knowledge of the said iTel smart phone. The Prosecution put it to the accused person that he was caught by an informant while in the process of selling the said phone, to which the accused person responded that he did not attempt to sell the phone and that he was arrested while sleeping. The Prosecution put it to the accused person that on 7th November 2022 at about 12:00 am, the accused person attacked the complainant, Blessing Nenya with a cutlass (machete) around Coco Beach in Nungua. The accused person denied the assertion by the prosecution and stated in answer that he (accused person) did not even go to that area. Prosecution further put it to the accused person that he inflicted cutlass wounds on the left arm of the complainant. The accused person denied the allegation by the prosecution. Prosecution put it to the accused person that after his arrest, the complainant identified him as the person who stole his phone. Accused person denied the allegation by the prosecution. Prosecution further suggested to the accused person that in the process of attacking the complainant, the accused person injured the complainant. The accused person denied this allegation and insisted that he (accused person) was not the one who caused harm to the complainant.

At the end of the cross-examination of the accused person, he was asked by the court if he would like to call any other witness in the matter. The accused person told the court that there was a man named Jaffer who was his 'adopted' father who made a payment to the complainant on his behalf. He stated that the said man lived in Nungua. The court

ordered a witness summons to be served on the said Jaffer to appear before the court and testify in the matter.

Evidence in chief of DW1 (Francis Kojo Ghansah @ Jaffer)

DW1 gave his name as Francis Kojo Ghansah. He stated that he lived in Nungua and was unemployed. He recounted that he knows the accused person. DW1 stated on oath that he was at his spot when the accused person's wife and sister came with the complainant and that they had negotiated a settlement of GHS4,000 with the complainant which he (complainant) had accepted. He recalled that he stood in as a witness when the wife and sister of the accused person gave the complainant an amount of GHS2,000 on the first day. He recounted on oath that the second payment of GHS1,650 was made to the complainant at Coco Beach in Nungua, leaving a balance of GHS350. DW1 claimed to have video evidence of the payment made to the complainant.

Cross-examination of DW1 by the Prosecution

Under cross-examination, DW1 stated that the relationship between him and the accused person was that of friendship and that they both worked at the car station. He stated that the accused person told him that the investigator was aware of the settlement. He recalled that he called the investigator. Prosecution put it to Dw1 that the investigator was not aware of the settlement. DW1 answered that the accused person's wife could testify to this fact. This brought to an end the cross-examination of DW1 and the closure of the defence of the accused person. The Accused person did not re-examine DW1.

APPLICATION OF LAW TO THE FACTS AND EVIDENCE ADDUCED

Burden of Persuasion

Section 10 of the Evidence Act, 1975 (NRCD 323) reads:

(1) For the purposes of this Act, the burden of persuasion means the obligation of a party to establish a requisite degree of belief concerning a fact in the mind of the tribunal of fact or the Court.

(2) The burden of persuasion may require a party

   a. to raise a reasonable doubt concerning the existence or non-existence of a fact, or

   b. to establish the existence or non-existence of a fact by a preponderance of the probabilities or by proof beyond a reasonable doubt.

Burden and Standard of Proof in Criminal Matters

Section 11 of NRCD 323 provides as follows:

(1) For the purposes of this Act, the burden of producing evidence means the obligation of a party to introduce sufficient evidence to avoid a ruling on the issue against that party.

(2) In a criminal action, the burden of producing evidence, when it is on the prosecution as to a fact which is essential to guilt, requires the prosecution to produce sufficient evidence so that on the totality of the evidence a reasonable mind could find the existence of the fact beyond a reasonable doubt.

(3) In a criminal action, the burden of producing evidence, when it is on the accused as to a fact the converse of which is essential to guilt, requires the accused to produce sufficient evidence so that on the totality of the evidence a reasonable mind could have a reasonable doubt as to guilt.

Section 13 of NRCD 323 provides further:

(1) In a civil or criminal action, the burden of persuasion as to the commission by a party of a crime which is directly in issue requires proof beyond a reasonable doubt.

(2) Except as provided in section 15 (c), in a criminal action, the burden of persuasion, when it is on the accused as to a fact the converse of which is essential to guilt, requires only that the accused raise a reasonable doubt as to guilt.

See the cases of **MALLAM ALI YUSUF ISSAH vs. THE REPUBLIC [2003] DLSC 2390, SC; AGYEKUM & OTHERS V WONTUMI & OTHERS [1999-2000] 2 GLR 740, CA.**

Charges against Accused Person

Per an amended charge sheet filed by prosecution on 21st November 2022, the accused person was charged with the following offences:

- One count of robbery with the use of an offensive weapon contrary to section 149 of the Criminal and Other Offences Act, 1960 (Act 29); and

- One count of causing unlawful harm contrary to Section 69 of Act 29.

Before I delve into the facts and evidence presented to this Court by the prosecution and the accused person, it is important to discuss some antecedents which give proper context to this case.

Right of accused person not to testify or give any evidence

Article 19(10) of the Constitution, 1992 confers a right on an accused persons not to be compelled to give evidence at the trial. On the 27th day of February 2024, the court recorded the election of the accused person to mount the witness box and testify on oath. Notwithstanding the constitutional right as espoused above, an accused person can elect to so testify. The Court of Appeal in **AKWASI OSEI ADJEI & ANOTHER V THE REPUBLIC SUIT NO: CRIM. APP. NO. H2/50/2011** opined as follows:

"Article 19(10) of our Constitution says; "No person who is tried for a criminal offence shall be compelled to give evidence at the trial". This is in accord with the time-honoured principle in criminal trials that an accused person has a choice to either testify in defence or to remain silent. No matter which way an accused person chooses (i.e. either to testify or to remain silent), it is still incumbent on the prosecution to prove any charge levelled against him beyond reasonable doubt."

In the case before this court, the accused person chose to testify and same was duly recorded on 27th February 2024.

It is important to also point out that the accused person also elected to represent himself in lieu of counsel throughout the trial.

The impact of the absence of the testimony of the complainant on the case

It is trite learning that the prosecution of criminal matters is the sole prerogative of the Attorney-General who or on whose behalf the prosecutorial powers of the State are exercised. Traditionally, the victim and/or complainant is a crucial piece of the prosecutor jigsaw which pieces together the case of the prosecution. Often times, the withdrawal of the complainant or a lack of interest in the case by the complainant may be injurious to

the case of the prosecution and my adversely impact the ability to meet its evidentiary burden. This turn of events must however not be construed to mean that the prosecution is incapacitated by the absence of cooperation or evidence at trial by the complainant. The decision to proceed with prosecution is the preserve of the Attorney-General or his/her representatives (Prosecutors). This is especially the case when it is apparent that there is a case for the accused person to answer looking at the totality of evidence before the court notwithstanding the absence of evidence at trial by the complainant. It should not become a settled opinion that a complainant can trigger the state machinery of prosecution and willy nilly discontinue as if it were a civil matter in which a plaintiff elects to discontinue against the defendant.

This matter is one that the complainant abandoned, thus, causing prosecution to pray the court to strike out complainant's witness statement from the record, which prayer the court granted on 27th February 2024. Notwithstanding this turn of events, the court is within its juridical powers to continue to hear the matter in the face of sworn testimonies from the investigator (PW1), the accused person and a witness for the accused person (DW1). I will now turn my attention to the facts before the court and examine the evidence adduced in the matter.

Examination of the facts and evidence presented to the court

The evidence of D/Sgt. Simon Migida Ndeog-Naab (PW1) is that Thomas Kwabena Vordzorgbe (accused person) robbed one Blessing Nenya (complainant) of his iTel smart phone with the use of an offensive weapon (a machete/cutlass) at Nungua on the 7th day of November 2022. He also testified that it was the accused person who caused unlawful harm to the complainant by inflicting cutlass wounds on the complainants. He tendered without objection the following exhibits in support of the prosecution's case: Photographs of accused person's injuries as Exhibits 'A' and 'A1'; the Investigation

Caution Statement of accused person as Exhibit 'B'; Charge Statement of accused person as Exhibit 'C'; and photographs of an iTel smart phone as Exhibits 'D', 'D1' and 'D2'.

Per Exhibit 'B', which is the Investigation Caution Statement of accused person dated 8th November 2022, the accused person stated voluntarily that on 7th November 2022 at about 1:00 am, he and one Ayitey K2 Richard went to town with cutlasses in search of a certain supposed Nigerian occult group. He stated that upon meeting one Nigerian boy i.e. the complainant, the accused person ordered him to surrender himself for a search but that the complainant did not comply with his order. The accused person stated in Exhibit 'B' that he used the cutlass to cut the complainant but he could not recall which part of his body he (accused person) cut. He stated further that his leaders, Odai Taller and Kwabena Abodam sought permission from the Nungua Wolommo (a spiritual leader in the Nungua Traditional Area) to enforce an order that no one should be seen walking around after 12 am. He further stated that although the complainant did not have anything in his possession to suggest that he was a bad person, he (accused person) and his colleagues were simply enforcing the directives of the Nungua Wolommo. The accused person stated further in Exhibit 'B' that he took the complainant's phone after cutting him with the cutlass. According to his statement, accused person took the phone away to one Joseph Ababio alias Odorlor who asked to keep the phone and that when he refused to hand over the phone to him, the said Odorlor brought the complainant and some boys to his sleeping place and arrested him. The phone was found on the accused person. The accused person admitted in Exhibit 'B' that the phone belonged to the complainant. It is worth mentioning that the accused person did not identify the model of the phone, except that the phone in his possession belonged to the complainant. PW1 proffered Exhibits 'A' and 'A1' which are photographs depicting the injuries of the complainant. The said exhibits show blood-soaked wrappings of the wounds of the complainant which are

alleged to have been inflicted by the accused person. Exhibits' D', 'D1' and 'D2' show an image of an iTel smart phone supposedly belonging to the complainant.

The accused person gave a sworn statement and was cross-examined by the prosecution. He unequivocally denied robbing the complainant. He also denied causing harm to the complainant by inflicting cutlass wounds on the arm of the complainant. In fact, the accused person denied ever having been to the location where the robbery was said to have occurred. He stated on oath that he was sleeping when he was arrested and sent to the police station. He further denied knowledge of the iTel smart phone said to belong to the complainant. He also stated that he was not caught attempting to sell the iTel smart phone and that the only phone found on him was a Samsung keypad phone. The accused person argued that the robbery was committed by some other persons who were allowed to escape.

The accused person's witness DW1 testified that he was a friend of the accused person and that the wife and sister of the accused person came to him and arranged for the payment of a total of GHS3,650 to the complainant with a remaining balance of GHS350. His testimony was largely limited to his witnessing of some payments made to the complainant. According to the accused person, the complainant took the money in order to withdraw the case because he was tired of the case.

This court notes that, at the prayer of the prosecution, the complainant's witness statement filed on 30th March 2023 was struck out on the 27th day of February 2024. The prosecution did not tender the complainant's police statement in evidence either. Thus, on the whole, the complainant's testimony and/or side of the story is not available for scrutiny by the court. The complainant can be said to have abandoned the matter. As argued above, however, the mere absence of a complainant, unlike in a civil matter, does

not truncate a criminal prosecution. The Prosecution, which, by law, brings the action at the instance of the Attorney-General, duly exercised its power to proceed with prosecution notwithstanding the absence or non-cooperation of the complainant.

The court also notes the exercise of the accused person of his right to give a sworn statement and be cross-examined thereon. The accused person was also informed by the court of his right to call any witness he may so wish, and the accused person duly exercised the said right to call one other witness, to wit, DW1. The court further notes that in rendering the charge statement and investigation caution statement, the accused person was duly informed of his rights and the said statements were taken in the presence of an independent witness. Suffice it to say, without belabouring the point that the said statements were tendered into evidence by PW1 without objection.

Offences of Robbery and Causing Unlawful Harm

The offence of Robbery is proscribed under Section 149 of the Criminal and Other Offences Act, 1960 (Act 29). Section 150 of Act 29 provides the essential ingredients in a charge of robbery. It provides that: "A person who steals a thing commits robbery

(a) if in, and for the purpose of stealing the thing, that person uses force or causes harm to any other person, or

(b) if that person uses a threat or criminal assault or harm to any other person,

with intent to prevent or overcome the resistance of the other person to the stealing of the thing."

The offence of Causing Unlawful Harm is proscribed under Section 69 of Act 29. It provides, "A person who intentionally and unlawfully causes harm to any other person commits a second degree felony."

In order to prove the guilt of the accused person beyond reasonable doubt, a standard required of the prosecution by Sections 11(2) and 13(1) of NRCD 323 ought to be met.

The prosecution in the instant case tendered images of the injuries to the complainant. To my mind, those exhibits alone, do not conclusively prove that it was the accused person who inflicted the injuries on the complainant. Prosecution further tendered the investigation caution statement of the accused person as Exhibit 'B'. There being no objection on record from the accused person on the admissibility of Exhibit 'B', and there being no suggestion of undue influence or duress on the accused person which could call into question the validity of the said statement or the probative value to be attached thereto, Exhibit 'B' stands as the true and credible investigation caution statement of the accused person. In the said statement, the accused person unequivocally admits meeting the complainant whom he describes as a 'Nigerian boy' in the early hours of 7th November 2022. He admits ordering the surrender of the complainant to a search and the subsequent resistance of the complainant. Accused person then confesses in Exhibit 'B' to cutting the complainant with a cutlass (machete) and taking complainant's phone away. He stated therein that although he cut the complainant with a cutlass, he could not remember the part of complainant's body to which he inflicted the cut. He did not state the type or model of phone which he took from complainant. In a sudden 'U-turn', the accused person stated on oath during his testimony on 27thFebruary 2024 that he did not take the phone from the complainant. He denied inflicting cutlass wounds on the complainant. He also denied being present at the scene of the crime and stated that the real perpetrators were left to abscond. This court is faced with one question, whether or not Exhibit 'B' ought to be considered by the court in determining the guilt or innocence of the accused person in light of the inconsistencies inherent in accused person's testimony before the Court and Exhibit 'B'.

The case of the **REPUBLIC V JUSTICE EDUAH AND APOR AMOAKWAH FREDRICK [2017] DLHC 17237** is instructive in determining how the court treats previous inconsistent statements made by accused persons in light of subsequent oral testimony by the accused person. In the said case, Exhibit 'B1' was the 1st Appellant's cautioned statement which was tendered by PW2. The trial court found that Exhibit 'B1' was given voluntarily by the 1st Appellant in the presence of an independent witness. The contents of Exhibit 'B1' showed that the 1st Appellant admitted the offence. The 1st Appellant further admitted that he knew the 2nd Appellant therein and the three other accomplices, as they all hail from the same village. During his cross examination however, the 1st Appellant denied the admission contained in the cautioned statement when he claimed he knew only one accomplice. The Court relied on **BILLAH MOSHIE V THE REPUBLIC [1977] 2 GLR 418** wherein the Court of Appeal held that a conviction could properly be based entirely on the evidence of a confession by a prisoner and such evidence was sufficient as long as the trial judge enquired most carefully into the circumstances in which the alleged confession was made and was satisfied of its genuineness. Moreover, a party or witness whose evidence on oath is contradictory to a previous statement made by him is not worthy of credit. His evidence cannot therefore be regarded as being of any importance in the light of his previous statement made by him.

In the instant case, the Court holds that the statement contained in Exhibit 'B' constitutes unequivocal confessions/admissions made by the accused person and are to be preferred to accused person's testimony of 27th February 2024, the said testimony being contradictory to Exhibit 'B'. The testimony of the accused person given on 27th February 2024 is hereby regarded as being of no importance in light of his previous statement made by him.

This court further holds that Exhibit 'B' serves as a solid foundation which lends credibility and much needed context to Exhibits 'A', 'A1', 'D', 'D1' and 'D2'. Per Exhibit 'B', the accused person admits to forcibly taking the phone belonging to the complainant. He further admitted in Exhibit 'B' to causing unlawful harm to the complainant by inflicting cutlass wounds on the complainant. The extent of injury is depicted in Exhibits 'A' and 'A1'. Furthermore, in the absence of any evidence to the contrary, the court accepts Exhibits 'D', 'D1' and D2 as the smart phone belonging to the complainant. The court takes cognizance of the admission made by the accused person i.e. forcibly taking the complainant's phone.

If the testimony of DW1 is anything to go by, it begs the question why would the accused person hasten to pay a sum of GHS3,650 to the complainant? Albeit, intended to buttress the defence of the accused person, it would seem that the testimony of DW1 adds no value to the defence of the accused person. On the contrary, it appears that the accused person paid the complainant to abandon the case. As fate would have it, the prosecution proceeded with the matter regardless of the absence of the complainant.

The accused person is enjoined by Section 13(2) of NRCD 323 to raise a reasonable doubt. The law provides that in a criminal action, the burden of persuasion, when it is on the accused as to a fact the converse of which is essential to guilt, requires only that the accused raise a reasonable doubt as to guilt. The Supreme Court held **in MALLAM ALI YUSUF ISSA V THE REPUBLIC [CRIMINAL APPEAL NO. 4/2001]** thus: "Taken together, the burden of producing evidence and the burden of persuasion are the components of 'the burden of proof.' Thus, although an accused person is not required to prove his innocence, during the course of his trial, he may run a risk of non-production of evidence and/or non-persuasion to the required degree of belief, particularly when he is called upon to mount a defence."

In this case, the accused person, although not required to prove his innocence, ought to raise a reasonable doubt as to the existence of a fact essential to his guilt. He attempted to do so on 27th February 2024 when he strenuously, under oath, denied taking the complainant's phone, inflicting cutlass wounds on the complainant and taking the said phone away. He also denied ever being present at the location where the crime was alleged to have taken place. His own cautioned statement i.e. Exhibit 'B', as discussed *supra*, completely negates and annihilates any reasonable doubt he may have attempted to raise. I must add that on the fact of being arrested while attempting to sell the stolen phone, prosecution did not prove the said fact beyond reasonable doubt, especially in light of the fact that the accused person presented an alternative story in his Exhibit 'B' i.e. that one Odorlor wanted to keep the phone and when he refused, Odorlor came with some other persons to arrest him and that he was not making any attempt to sell the phone. In the absence of any corroborative evidence put forward by the prosecution, I find that the accused person raised a reasonable doubt regarding whether or not he was arrested whiles attempting to sell the phone.

As regards the facts essential to the robbery and the attendant harm caused to the complainant by the accused person, the accused person failed to raise a reasonable doubt. Thus I find in favour of the prosecution regarding said facts.

Decision

This court is of the opinion that on the strength of Exhibit 'B' and the totality of evidence before the court, the prosecution has met its evidentiary burden and has proven the guilt of the accused person in respect of the charge of robbery contrary to Section 149 of Act 29 beyond reasonable doubt. I find that the accused person robbed the complainant by causing harm to the complainant and stealing his phone. To my mind, the fact of causing

unlawful harm has been proven by the prosecution as an essential element of the charge of robbery. Thus, a distinct finding of guilt under Section 69 of Act 29 could potentially embarrass the accused person and give the appearance of being found guilty twice for the same offence or the same conduct. Accordingly, the charge of causing unlawful harm is expunged. ***This court finds the accused person, Thomas Kwabena Vordzorgbe, guilty of robbing Blessing Nenya contrary to Section 149 of Act 29.***

Sentencing

In the words of Prof Mensa-Bonsu(Mrs) JSC in the case of **Kweku Quaye alias Togbe v The Republic** "… The notion of "first offender usually means that it is the first time the person has been caught in the net of the law, and not necessarily that it is the first time he has indulged in that activity…"

The case of **Kwashie & Anor v The Republic (1971)1 GLR 488-496** emphasizes that even a first offender may receive a harsh sentence if the crime is particularly heinous or involve cruel methods.

Again, in the imposition of sentence on a convicted person, the Court must consider among others the prevalence of the crime within the particular locality where the offence took place or in the country in general.

In the present case, I take into primary consideration the following factors: the prevalence of the crime of Robbery within the jurisdiction and the country as a whole and the need for its deterrence; the seriousness of the offence; the level of violence; the extent and degree of injuries sustained by the victim and the kind of weapon that was used by the Accused person.

Other secondary considerations include the value of the property, in this case an itel smart phone valued at GH₵350 at the time.

I have also taken into account the personal circumstances of the Accused person as a husband and a father. The absence of any previous criminal record/conviction and particularly the period of time spent in lawful custody to date.

Further, I am guided by Section 149 of the Criminal Offences Act, 1960 Act 29 (as amended by section 6 of the Criminal code (Amendment) Decree, 1969 (NLCD 398) and Section 296 of the Criminal and Other Offences (Procedure) Act, 1960 Act 30 which provides for the punishment of a person convicted of a first degree felony to be liable to a life imprisonment or any lesser term and the punishment for a person convicted of a second degree felony to be liable to a term of imprisonment not exceeding ten years.

In the still further, I am guided by the Ghana Sentencing Guidelines on the offence of Robbery at Level C which pegs the custodial sentence range between 12-14 years for where the offence constitutes some aggravating factors and few mitigating factors as in the present case.

Having taken into consideration the above, the Court accordingly sentences the Accused person for the offence of Robbery contrary to section 149 of Act 29 to serve 6 years imprisonment with hard labour.